

Tentative Rulings for Department 501

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Tentative Ruling

Re: ***Kristi Ford v. Lyons Magnus, LLC***
Superior Court Case No. 24CECG05507

Hearing Date: June 10, 2026 (Dept. 501)

Motion: Defendants, Lyons Magnus, LLC's and Kris Porter's Motion to
Compel Plaintiff Kristi Ford's In-Person Attendance

**If oral argument is timely requested, it will be entertained on
Wednesday, June 17, 2026, at 3:30 p.m. in Department 403.**

Tentative Ruling:

The motion is granted. Plaintiff Kristi Ford is ordered to be available for deposition as noticed within 30 days.

Defendants, Lyons Magnus, LLC's and Kris Porter's request for sanctions is denied.

Explanation:

Defendants Lyons Magnus, LLC ("Lyons") and Kris Porter ("Porter") (collectively "defendants") move to compel plaintiff Kristi Ford's ("Ford" or "plaintiff") in-person deposition attendance.

On November 12, 2025, defendants' served a Notice of Deposition to take Ford's deposition on December 22, 2025. (Woodward Decl., ¶13.) On November 27, 2025, Ford's counsel provided a doctor's note purporting to support Ford's position that she is not able to sit for an in-person deposition. (Woodward Decl., ¶14.) On December 2, 2025, counsel for defendants and Ford conferred regarding the substance of the contents of the doctor's note, and Ford maintained her position that she has a mental condition preventing her from sitting for an in-person deposition. (Woodward Decl., ¶15.) On December 3, 2025, defendants requested a Pretrial Discovery Conference the result of which was an Order granting permission for Defendants to proceed with this motion. (Woodward Decl., ¶16.) On January 14, 2026, Ford, through counsel, confirmed she is still not willing to sit for an in person deposition absent court order. (Woodward Decl., ¶17.)

Code of Civil Procedure, section 2025.420 provides in pertinent part:

(a) Before, during, or after a deposition, any party, any deponent, or any other affected natural person or organization may promptly move for a protective order. The motion shall be accompanied by a meet and confer declaration under Section 2016.040.

(b) The court, for good cause shown, may make any order that justice requires to protect any party, deponent, or other

natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense. This protective order may include, but is not limited to, one or more of the following directions:

...

(5) That the deposition be taken only on certain specified terms and conditions.

Code of Civil Procedure section 2025.310, subdivision (b) states:

"Subject to Section 2025.420 [protective orders], any party or attorney of record may, but is not required to, be physically present at the deposition at the location of the deponent. If a party or attorney of record elects to be physically present at the location of the deponent, all physically present participants in the deposition shall comply with local health and safety ordinances, rules, and orders."

Ford objects to defendants' motion and in her opposition requests a protective order requesting a remote deposition in "order to prevent Plaintiff from being subjected to any further stress and anxiety, undue burden and expense, or unwarranted annoyance, embarrassment, or oppression." (Ford's Opposition, pg. 7:12-13.)

Ford provides a doctor's note from Dr. Gursharanjit Kaur, MD, which states in pertinent parts that "[Plaintiff] reports significant stress and anxiety related to work, history of domestic violence, and upcoming deposition." (Kreiman Decl., Ex. A.) The note shows that assessments were completed for anxiety disorder and major depressive disorder, among other assessments, and that the doctor is planning referrals "to psychology for therapy" and "to psychiatry for medication evaluation." (*Ibid.*) The note also includes a depression screening for which the note states Ford responded "Not at all" to questions about having "little interest or pleasure in doing things" and "feeling down, depressed or hopeless." (*Ibid.*) The note does not show a "diagnosis" of anxiety disorder. (*Ibid.*)

While the Court understands Ford's concerns and discomfort in attending a deposition, defendants have the right to an in-person deposition with Ford. Ford initiated this action against defendants. Defendants are afforded the right under the California Code of Civil Procedure to take an in-person deposition.

Accordingly, the motion is granted. Ford is ordered to be available for deposition as noticed within 30 days.

Defendants further request sanctions pursuant to Code of Civil Procedure section 2025.450, subdivision (g)(1), which states:

If a motion under subdivision (a) is granted, the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) in favor of the party who noticed the

deposition and against the deponent or the party with whom the deponent is affiliated, **unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.**

(Emphasis added.)

Under these circumstances, the Court does not believe sanctions are warranted. Ford did not refuse to be deposed, and did not intentionally make herself entirely unavailable for deposition. Ford proposed a legislatively authorized alternative to the in-person aspect of the deposition.

Accordingly, defendants' request for sanctions is denied.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC **on** 6/9/2026.
(Judge's initials) (Date)